Mutual Non-Disclosure Agreement

> ⓘ DRAFT. Needs legal review before use (see README).

This Agreement is dated {{DATE}} between:

1. **{{DW_LEGAL_NAME}}** ({{DW_REG_NO}}), of {{DW_ADDRESS}} ("**datawazi**"); and
2. **{{CLIENT_LEGAL_NAME}}** ({{CLIENT_REG_NO}}), of {{CLIENT_ADDRESS}} ("**Client**"),

each a "Party".

1. Purpose

The Parties wish to share information to discuss a possible data and AI services engagement (the "**Purpose**").

2. Confidential Information

Any information disclosed by one Party (the "Discloser") to the other (the "Recipient") that is marked confidential, or that a reasonable person would understand to be confidential. This includes business, financial, technical and personal data, data samples and system details.

It excludes information that: (a) is or becomes public through no fault of the Recipient; (b) the Recipient already lawfully had; (c) the Recipient receives lawfully from a third party without restriction; or (d) the Recipient develops independently.

3. Obligations

The Recipient will:

- use Confidential Information only for the Purpose;
- disclose it only to its employees and advisers who need to know it and are bound by similar obligations;
- protect it with at least reasonable care;
- tell the Discloser promptly of any unauthorised use or disclosure.

4. Required disclosure

The Recipient may disclose Confidential Information where the law, a court or a regulator requires it. Where lawful, it will give the Discloser prior notice.

5. Personal data

Any personal data shared is handled in line with the Personal Data Protection Act 2010. Samples are shared only if necessary, minimised and masked where possible.

6. Return or destruction

On request, or when discussions end, the Recipient will return or destroy Confidential Information and confirm this in writing. It may keep copies required by law or held in routine backups; these remain confidential.

7. Term

This Agreement lasts {{2}} years from its date. Confidentiality obligations survive for {{3}} years after it ends.

8. No other rights

No licence or obligation to enter any further agreement is created. Information is provided "as is".

9. Remedies

Breach may cause harm that money cannot adequately remedy. The Discloser may seek injunctive relief as well as any other remedy.

10. General

Governed by the laws of Malaysia. Subject to the jurisdiction of the courts of Malaysia. This is the entire agreement on its subject. It may be signed in counterparts and electronically.

For datawazi	For Client
Name:	Name:
Title:	Title:
Signature:	Signature:
Date:	Date: